Phase 3 Intake Questionnaire

Case History and Process Status

Private — Do not share with the agency

> Complete after the Phase 2 brainstorm analysis has been reviewed and the employee's confirmed functional limitations and accommodation selections are in hand. This questionnaire captures the history and current status of the accommodation request and will inform the strategic framing of all documents.

Part A — Current RA Request Status

1. Has a formal RA request been submitted for the current proceeding? Yes / No
2. If yes, on what date and through what channel:
3. Has a RAC been assigned? If so, provide name and contact information:
4. What communications have occurred with the RAC to date? Summarize by date:
5. Has a formal medical documentation request been made by the RAC? Yes / No
6. If yes, on what date and what is the stated deadline:
7. Has an interactive process meeting been scheduled? If so, when:
8. What interim accommodations, if any, are currently in place? For each, note whether they are formal (documented in writing) or informal:
9. What specific alternatives has the agency identified or proposed? List each one by name:
10. Are there any other pending actions or deadlines to be aware of?

Part B — Prior RA History

Complete for each prior RA request. Add sections as needed.

Prior Request 1:

1. Date submitted:
2. Case number (if known):
3. Accommodations requested:
4. Accommodations granted as interim, if any:
5. Outcome and date of final determination:

6. Was the outcome documented in a formal written RA Decision Memorandum? Yes / No
7. If denied or partially denied, were the required elements present — specific reasons articulated, undue hardship identified if relevant, employee notified of EEO rights and 45-day window? Describe what was and was not present:
8. Was the denial or determination legally sound? Note any apparent violations:
9. Was an EEO complaint filed in response? Yes / No / Pending
10. If yes, briefly describe the basis and current status:

Prior Request 2: (repeat structure above as needed)

Part C — Administrative Closure History

1. Has any prior RA request been administratively closed? Yes / No
2. If yes, for each closure:
   - Date of closure:
   - Stated reason for closure:
   - Is the stated reason one of the enumerated grounds in HHS Policy §126-1-90? Yes / No / Unknown
   - Was the closure legally valid? Note any concerns:
3. Was the employee told she could not submit a new request because of a prior determination? Yes / No
4. If yes, describe what was said, by whom, and in what form:

Part D — Reassignment History

1. Has the employee ever been offered reassignment as a last resort accommodation? Yes / No
2. If yes, describe the circumstances — was reassignment offered before all other accommodations were exhausted?
3. Did the employee accept or decline reassignment?
4. If declined, was the declination documented?
5. Were the prerequisites for reassignment under HHS Policy §126-1-100(A) met before it was offered? Describe:

Part E — Gap Periods and Compliance Concerns

1. Has there been any period during which the employee had no accommodation in place despite an active disability and pending request? Describe the dates and circumstances:
2. Has any accommodation ever been removed or modified without a new interactive process? Describe:
3. Has the agency ever failed to issue a written RA Decision Memorandum for a determination? Describe:
4. Has the RAC or supervisor made any statements — verbal or written — that appear to misrepresent the employee's conduct, statements, or rights? Describe and note whether documentation exists:
5. Has the agency cited the HHS Policy §126-1-50(L) undue hardship definition or similar language in any denial? Describe:
6. Are there any other agency actions that appear to violate HHS Policy 126-1 or the Rehabilitation Act?

Part F — Medical Documentation History

1. Is there existing medical documentation on file with the agency? Yes / No
2. If yes, when was it dated and what did it cover:
3. Was the prior documentation time-limited? If so, what duration did it recommend:
4. Will new documentation be required for the current request? Yes / No
5. How many treating providers will be providing documentation, and what is each provider's clinical scope:
6. Are there any concerns about the providers' availability or willingness to write documentation within the required timeframe:

Part G — EEO and Legal Status

1. Has an EEO complaint been filed related to this employee's RA situation? Yes / No
2. If yes, briefly describe the basis and current stage. Do not provide detailed complaint strategy here — that should be handled with EEO counsel:
3. Are there any open 45-day EEO contact windows to be aware of? Describe the triggering event and deadline for each:
4. Is the employee represented by EEO counsel? Yes / No
5. Are there any MSPB or grievance proceedings related to this matter? Yes / No / Describe:

6. Are there any other legal proceedings or deadlines to be aware of?

Part H — Additional Context

1. Is there anything about the RAC's conduct in this case worth noting for the record?
2. Is there anything about the supervisor's or decision maker's conduct worth noting?
3. Is there any other context — interpersonal, organizational, or procedural — that would help produce accurate and effective documentation for this employee?